

Distributed by: _____
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Date: _____

Acknowledgment by: _____
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Date: _____

CRIME VICTIM COMPENSATION PROGRAM

It is the goal of compensation to help restore victims of crime to their pre-crime status. Through reviewing claims, the compensation process determines how crime victim's compensation can be awarded in the greatest number of claims filed. No claim will be automatically declined for any reason.

It shall be the responsibility of the Compensation Claims Analyst to review each claim received to determine if the information provided meets the statutory requirements for compensation.

DVS employees refrain from behavior that communicates victim blame or suspicion or other judgmental, anti-victim sentiment. DVS employees will make concerted efforts to suspend judgment in order to maintain professional trust and to effectively advocate for victims of crime.

DVS employees respect the victim's right to self-determination. In some cases, the DVS employees' perception of victim wants, needs, and rights may not correspond with the victim's perceptions. Unless dictated by program policy, DVS employees shall under no circumstances use ultimatums in provision of services. DVS employees are further prohibited from intentionally withholding service information that may contribute to the victim's decision making. The victim has the most informed perspective regarding his or her own history, inclination, risks, and resources. Accordingly, the victim carries the ultimate authority over his or her own interests. When victim wants are at stark odds with DVS employees' perceptions of the victim's best interest, DVS employees can present information to help the victim to gain a fuller perspective.

When DVS employees work with a victim whose ability to make decisions is impaired due to disability, age, or other factors, or if the victim is under a guardianship, DVS employees should encourage the victim/guardian to make his or her own decision including providing the victim/guardian with opportunities to make his or her decision. In such situations, DVS employees may need to make accommodations to enable the victim to exercise self-determination and should consider referrals to appropriate resources.

Claims are to be reviewed upon receipt in the division and a determination made as to completeness. If the application is incomplete, the compensation claims analyst will notify the appropriate person or agency to obtain missing information or if necessary, return the application for completion.

Claims analysts shall remain current with national issues concerning crime victimization as it relates to compensation and trends in policy and shall respond to legislation, community and state requests for information.

Claims analysts shall actively participate in planning of DVS conferences and cooperate with other DVS staff and other victim service providers; performs other tasks requested by the director, in achieving agency mission.

COMPENSATION CLAIMS POLICIES

According to Wyoming State statute 1-40-102 (a) (iii), "Criminal act" means an act committed or attempted in this state, including an act of domestic violence, which constitutes a crime as defined by the laws of this state or an act of terrorism, as defined by 18 U.S.C. 2331 committed outside the United States, and which results in actual bodily injury, or actual mental harm, or death to the victim. No act involving the operation of a motor vehicle, boat or aircraft which results in injury or death constitutes a crime for the purpose of this act unless the injury or death was recklessly or intentionally inflicted through the use of the vehicle, boat or aircraft, or unless the act constitutes a violation of W.S. 31-5-233."

The fact that the offender was charged with a violation of the criminal code will satisfy the criteria that a crime was committed. It shall not be the role of the division to interpret individual statutes to determine eligibility for compensation.

Motor Vehicle Crashes: (As it relates to the definition of reckless)

The W.S. 1-40-102 defines "criminal act" with regards to motor vehicles as "no act involving the operation of a motor vehicle, boat or aircraft which results in injury or death constitutes a crime for the purposes of this act unless the injury or death was recklessly or intentionally inflicted through the use of a vehicle, boat or aircraft or unless the act constitutes a violation of W.S. 31-5-233. (DUI), W.S. 31-5-229. (Reckless Driving.) W.S. 31-5-1101. (Duty to stop vehicle where accident involves death or personal injuries).

"Motor Vehicles" include:

- Car
- Boat
- Snowmobile
- Aircraft
- Motorcycle
- Four-wheeler
- Any other motorized conveyance

ELIGIBLE CLAIMANTS:

In the event that a primary victim is unable to apply for Crime Victim Compensation due to age, incapacity/disability, or death, the following persons may apply on the victim's behalf. In the event there are multiple potential claimants, preference shall follow the order listed below:

- Spouse
- Parent
- Legal guardian
- Grandparent
- Stepparent
- Adult child, (natural, adopted, or step)
- Brother or sister
- Persons married to each other
- Persons formerly married to each other
- Persons formerly living with each other as if married
- Dating relationships
- Other adults sharing common living quarters
- Any other identified claimant subject to approval by the Director

PRIMARY VICTIM ELIGIBILITY

Eligibility for Crime Victim Compensation Claim requires one of the following:

- Report to Law Enforcement pursuant to Wyo. Stat. § 1-40-106 (a) (iv) (Medical & Mental Health)
- A valid Order of Protection (Mental Health Counseling Only). A claim cannot be approved based on an Ex Parte Order of Protection.

Examples of violent crimes

- Homicide and vehicular homicides
- Child abuse
- Domestic Violence/Stalking
- DUI/Reckless Driving and Hit & Run crashes involving injuries
- Robbery
- Assault
- Sexual Assault
- Kidnapping
- Children who witness a violent crime being committed against an adult

Who is not eligible:

- The offender and or accomplice
- A victim convicted of a felony after applying for compensation

- A victim who is under indictment for a felony related to their compensation claim
- A victim who is incarcerated in a prison or correctional facility (services shall be covered by County Detention Center or Prison Health Services)
- A victim whose expenses are paid entirely by a collateral source
- Victims of property crimes
- Victims seeking compensation for pain and suffering
- A victim of a crime occurring before May 23rd, 1985.

Collateral Sources

- Health Insurance
- Medicaid
- Medicare
- Workers' Compensation
- Unemployment Insurance
- Life Insurance: First \$100,000.00 is exempt.
- Sick/vacation leave
- Restitution
- Social Security Death Benefits
- Tribal Grant (Tribal loan is not a collateral source as it must be paid back)
- Auto Insurance
- Home Owner/Renters Insurance
- Another Crime Victim Compensation program for the same crime
- County Detention Centers or Prison Health Services if crime occurred while victim was detained or incarcerated or victim is currently detained or incarcerated
- Any other state or federally funded programs covering the same benefits (unless explicitly designated as payor of last resort)

NOT considered Collateral Sources

- Indian Health Services
- Crowd-sourced funding on behalf of a victim (ex. Go Fund Me, etc.)
- Additional resources upon the discretion of the Director for good cause

ASSOCIATED VICTIM ELIGIBILITY

Note: The following pertains to those who meet eligibility criteria and the primary victim has filed an application for compensation.

Associated victims shall sign an authorization form so they are under the same legal obligation as primary victims and understand their commitment once they have accepted victim compensation. As with the primary victim, all collateral resources shall be identified and assessed before applying for victim's compensation.

If claimants are seeking associated victim benefits, they do not need to complete a separate application. If the associated victims are other than the claimant, they must complete the Associated Victim Application.

The primary victim has first rights with respect to the maximum award and priorities.

Eligibility

- Children who witness violent crimes against adults
- Spouses or partners residing with a sexual assault victim
- Household members of victims*
- Relatives of a victim **

* *"Household member"* means:

- Persons married to each other
- Persons living with each other
- Persons formerly married to each other
- Persons formerly living with each other as if married
- Parents and their adult children
- Other adults sharing common living quarters
- Persons who are the parents of a child but who are not living with each other
- Dating relationships

** *"Relative"* means:

- Spouse
- Parent
- Grandparent
- Stepparent
- Child, including natural born child
- Stepchild or adopted child
- Grandchild
- Brother or sister

Payment Threshold on Associated Victim Claims

Associated victims may be eligible for compensation with regard to counseling and other economic losses in an amount not to exceed \$1,500.00 per year for a maximum of \$4,500.00 for the life of the claim (effective July 1, 2019). The compensation paid to an associated victim is included in the primary victim's award of \$15,000.00.

CONTRIBUTORY FACTORS TO BE CONSIDERED

The Director has discretion to adjust or waive reduction percentages recommended by Claims Analysts.

Certain contributory factors shall not be considered in domestic violence cases, human trafficking cases, sexual assault cases, or when the victim is a minor child.

Contributory conduct is not considered on homicide claims

Contributory factors may reduce the amount of each bill **and** of the total award.

Reductions are cumulative.

Reductions/denials may not be limited to these factors alone.

Denials

Claims may be denied for the following contributing conduct:

- Victim was assisting, attempting to commit or committing a felony criminal act.
- Mutual combatant – victim challenges or is challenged to fight and accepts the challenge.
- Victim was charged with DWUI or Reckless Driving.

Reductions

50% reduction for the following contributing conduct:

- Victim violates conditions of bond, probation or parole.
- Victim knowingly and willingly enters a motorized vehicle operated by a person under the influence of alcohol or a controlled substance.
- Victim was assisting, attempting to commit or committing a misdemeanor criminal act.
- Victim was driving without a license, or driving under suspension.
- Victim was driving without insurance.

25% reduction for the following contributing conduct:

- Victim provoked the offender in a manner where bodily harm appeared likely.
- Victim failed to retreat or withdraw from a situation where an option to do so was readily available.
- Mutual combatant situation

15% reduction for the following contributing conduct:

- Use of obscene/fighting words or threatening gestures.
- Poor judgment because the victim used alcohol or a controlled substance.
- Victim continues to provoke the defendant consequently escalating the situation.
- Victim was drinking alcohol under the age of 21.

CATASTROPHIC INJURY

Description of Coverage

In addition to the maximum award authorized, in the case of catastrophic injury the division may award an additional amount not to exceed ten thousand dollars (\$10,000.00) to the victim to cover future lost wages, special medical needs and any other special assistance needed as a result of the injury.

The additional award may be made only for losses and expenses occurring within twenty-four (24) months after the date of the injury.

- Special renovations to home or car to accommodate disability
- Lost wages
- Special home health care, adaptive or medical equipment
- Prosthesis
- Wheelchairs or other adaptive devices
- Assisted technology items
- Cost associated with a life flight

Who May Receive Benefits

A qualified victim who sustains a partial or permanent disability as a result of a crime, examples but not limited to:

- Loss of hearing
- Loss of eyesight
- Loss of limb
- Paralysis
- Traumatic or acquired brain injury
- Injuries requiring the victim be life flighted to a level one trauma facility

Financial Limits

There shall be an award of \$10,000.00 per victim per crime. This is in addition to the \$15,000.00 overall award.

Catastrophic award is also subject to contributing conduct reductions and guidelines.

Requirements

- Medical provider's verification of the crime related disability or injury.
- Employment verification for date of crime.
- Bill and/or receipts for cost of home improvements or specialized support services.
- Identification of any appropriate collateral sources.

MEDICAL/ DENTAL EXPENSES

Description of Coverage

- Medical services, physical therapy and any method of healing recognized by the laws of the State of Wyoming.
- Sexual assault emergency room expenses (see SANE Exam policy if outside of CVCP).
- Dental services directly related to the crime.
- Emergency mental health counseling, emergency room treatment, and in-patient treatment.
 - All in-patient treatment must be directly related to the crime.
- Prescriptions needed as a result of the crime.
- Replacement of eyeglasses.
 - not to exceed \$300.00.
- Hearing aids and dentures damaged or destroyed as a result of the crime.
- Acupuncture treatment.
- Chiropractic treatment.

Financial Limits

- Up to maximum award of \$15,000.00 per claim.
- Length of coverage is two (2) calendar years from the date of the crime.
- Length of coverage is two (2) calendar years from the date the crime was reported, if victim is a child when crime is reported.

Requirements

- Itemized medical bills from service providers and/or receipts for out-of-pocket payments.
- Full disclosure of available insurance or other health care assistance.
- Explanation of benefits forms.
- Identification of collateral sources.

MENTAL HEALTH EXPENSES

Description of Coverage

- Mental health costs incurred as a direct result of the crime.

- Individual therapy related trauma as a result of the crime
- Family therapy including the primary victim related to the trauma as a result of the crime, to be paid at the group counseling rate.

Counseling for primary and associated victims may be paid for three (3) years from the date of the crime. The first counseling session must be within one (1) year of the date of the crime. The first counseling session for juvenile victims (crimes reported past the one year filing requirement) must be within one year of reporting date of the crime.

The initial counseling visit shall be paid in full. Thereafter, counseling shall be paid at the rate of eighty-five dollars (\$85.00) an hour. Group counseling shall be paid at a rate of forty dollars (\$40.00) an hour. Telehealth providers for individual therapy will be covered at the same rate as in-person individual therapy.

Beginning January 1, 2021, for all open and new claims, a Mental Health Certification Form shall be completed by the treatment provider and kept on file if the claimant exceeds 10 visits. If the Mental Health Certification Form indicates that at least 50% of treatment is for pre-existing conditions, payments will be reduced to reflect the percentage of treatment directly related to the crime.

Ineligible Expenses

- Pre-paid mental health subscription services are not eligible for reimbursement.
- Substance use/abuse treatment is not eligible for reimbursement.
- Holistic/alternative healing practices/treatment are not eligible for reimbursement unless accompanied by a written justification by treating provider and are subject to approval by the Director.

Who May Receive Benefits

- A qualified victim of a personal injury crime.
- A qualified associated victim.
- Elderly victims (60 years and older) of financial or material exploitation (fraud).
- Children who witness a violent crime being committed against an adult.

Financial Limits

- \$85.00 per hour—if insurance pays a portion, then CVCP will pay the balance up to \$85.00 per hour.
- \$40.00 per hour for group therapy.
- \$4,500.00 per associated victim.
- \$3,000.00 for Elderly victims of financial fraud.

All awards are deducted from the maximum allowable award.

Requirements

- Licensed counselor, therapist or psychiatrist;
- Full disclosure of available insurance or other health insurance assistance;
- Mental Health Treatment Certification form (pre-existing conditions/ in-patient treatment);
- Identification of any collateral sources.

CRIME SCENE CLEANUP

Description of Coverage

Licensed professional cleanup of the crime scene with documentation of service provided and cost.

Who May Receive Benefits

A qualified victim, claimant, or associated victim.

Financial Limits

\$2,500.00 per claim.

Requirements

- Bill or receipt for service and full disclosure of insurance.
- Identification of any collateral sources.

RELOCATION

Description of Coverage

- Actual cost of commercial transportation.
- Rental of U-Haul/moving company cost.
- Gas receipts or mileage at State of Wyoming established rate.
- Housing and food reimbursed at the federal meals and incidental expense rates (M&IE) per U.S. General Services Administration (GSA) guidelines.

Who May Receive Benefits

- A qualified victim and/or associated victim of a crime.
- A person who was victimized in their own home and/or is no longer safe staying in the home.

Financial Limits

- \$1,200.00 per claim
- \$500.00 maximum award for persons not safe in their home who must relocate within their community.
- \$500.00 maximum award for persons relocating if the crime scene was the home of the victim and returning would do greater harm to the victim.
- All award amounts shall be deducted from the maximum award amount.

Requirements

- The victim(s) must need to relocate to another community or state due to a threat of personal injury, verified in writing by the law enforcement agency or prosecutor.
- Victim was victimized in their home and would not be safe in the home if they returned, verified in writing by the law enforcement agency or prosecutor.
- Victim may need to relocate if the crime scene was the home of the victim and returning would do greater harm to the victim. Examples include, but not limited to, the following:
 - homicides
 - sexual assaults

FUNERAL/BURIAL EXPENSES

Description of Coverage

- Funeral/burial plot/headstone/flowers
- Transportation of body
- Cultural exchanges
- Clergy and musician fees
- Mileage or airfare, motel and per diem for up to two (2) people to travel to identify and/or claim the body. Not to exceed \$600.00 total, per person.
 - Separate from the \$7,000.00 allowed for funeral expenses, but shall not exceed the maximum award amount.

Who May Receive Benefits

A qualified claimant or associated victim who contracts with the funeral home or who voluntarily makes payments, or has incurred other expenses directly related to the funeral.

Financial Limits

- Up to a maximum award of \$7,000.00 per claim and is deducted from the maximum award amount.

- Cultural exchanges may not exceed \$1,000.00 and are deducted from the maximum funeral award of \$7,000.00.

Requirements

- Copy of itemized funeral purchase agreement, receipt or other form of proof of payment.
- Identification of collateral sources.

LOSS OF EARNINGS

(Lost Wages)

Description of Coverage

Income lost to a qualified victim due to serious injury as a result of a crime.

- Wages lost while receiving medical treatment or counseling.
- Wages lost because of permanent disability.
- Wages lost because the victim is attending the sentencing of the offender and providing a victim impact statement.

Income lost to a qualified associated victim or claimant.

- Wages lost during travel time to be with a critically injured victim.
- Wages lost while attending a critically injured victim.
- Wages lost while transporting victim to medical treatment, counseling, or sentencing when the victim is providing a victim impact statement.
- Wages lost while taking bereavement leave due to the death of the victim.

Collateral sources which shall be considered, include, but are not limited to the following examples:

- Sick leave
- Vacation pay
- Unemployment
- Workers' compensation

Who May Receive Benefits

A qualified victim, claimant, or associated victim.

Financial Limits

Maximum amount must not exceed the federal minimum hourly wage for eight (8) hours per day, or forty (40) hours per week, or one hundred seventy-three (173) hours per month up to three (3) months total. Amount is deducted from maximum award amount.

If the victim was employed for less than the six months preceding their victimization, payment for lost wages shall not exceed the amount of time the

victim had worked prior to their victimization, but shall not exceed the ninety (90) day cap. (Example: Victim is hired in January, then is a victim of a crime in March. If unable to work, CVCP will pay no more than sixty (60) days lost wages).

If the victim can return to work only on a part-time basis as recommended by treating physician, loss of earnings shall be considered for the part-time or limited basis up to the maximum allowable rate under Wyoming State Statute.

If a victim is deemed disabled and qualifies for Social Security, loss of wages for up to three (3) months shall be considered until Social Security benefits become effective. Compensation may cover the difference between the Social Security amount and maximum monthly award.

Advanced loss or future loss of earnings may be considered in thirty (30) day intervals if verified by the treating physician documenting the victim will be unable to work due to the injuries incurred as the result of the crime.

Bereavement leave may be considered for up to ten (10) days.

Requirements

- Victim, claimant, or associated victim must be employed at the time of crime.
- Employer certification form or federal tax statement if self-employed.
- If the claim for lost wages exceeds thirty (30) days, a verification from a physician or mental health service provider indicating the victim's inability to work was crime related shall be required for any additional coverage up to the maximum of three (3) months total.
- Social Security Benefits Explanation Form.

LOSS OF SUPPORT

Description of Coverage

- Income lost to the household when a victim, who was gainfully employed on the date of the crime is killed or incapacitated.
- Income lost to the victim's dependents because the victim is not able to work as a result of their victimization.
- Income lost to the household when the offender, who was gainfully employed on the date of the crime and was the sole source of support for the household, is incarcerated or otherwise ceases support to the victim's household.

Who May Receive Benefits

A qualified victim, claimant, dependents or associated victim.

(Definition of Dependents: WS 1-40-102 (a) (IV): any relative of the victim who was wholly or partially dependent upon the victim's income at the time of the injury or death, and includes the child of a victim born after the victim's death).

(Definition of a Relative: Spouse, Parent, Grandparent, Stepparent, Child, Stepchild or Adopted Child, Grandchild and brother or sister).

(Note: The statutory definition of 'dependent' and 'relative' indicates there must have been a "legal" relationship and must be living in the household to be eligible).

Financial Limits

- Maximum amount must not exceed the federal minimum hourly wage for eight (8) hours per day, or forty (40) hours per week, or one hundred seventy-three (173) hours per month, not to exceed three (3) months total.
- Up to thirty (30) days loss of support may be considered by the Claims Analyst.
- The Director may extend the time period in thirty (30) additional day increments, not to exceed three (3) months total.
- Payments may be paid in monthly installments or in a lump sum if loss of support as a result of the crime predates the compensation application receipt.
- Up to three (3) months of loss of support from deceased victims may be considered until Social Security death benefits become effective.

Requirements

- Verification the victim was contributing to the support of the household through gainful employment at the time of the crime.
- Employer Certification Form, W2's or, if self-employed, last federal tax statement.
- Offender is no longer in the household and not financially contributing to victim.

Note: Governmental entitlements are not considered as employment or as income.

Government Entitlements Include:

- Supplemental Social Security Income (SSI)
- Supplemental Social Security Disability Income (SSDI)
- Native American per capita

REPLACEMENT OF PERSONAL PROPERTY SEIZED AS EVIDENCE

Description of Coverage

- Articles of clothing, shoes, bed clothes, etc. which were seized as evidence by law enforcement and will not be returned to the victim.
- Clothing and/or bedding seized as a result of a sexual assault.

Exemptions

- Cell phones, laptops, tablets, and any other elective electronic devices are not covered under the CVCP, unless good cause is shown for reimbursement.

Who May Receive Benefits

A qualified victim or claimant whose property was seized as evidence.

Financial Limits

Up to a maximum award of \$500.00 per claim deducted from the total award amount.

Requirements

Law enforcement report must verify items seized as evidence. Only items that will not be returned to victim are eligible. All items under sexual assault cases are eligible even if they could be returned. Victim shall furnish itemized list with estimated replacement costs. Items destroyed or damaged during the crime are not eligible.

TRAVEL EXPENSES

Who May Receive Benefits

- A qualified victim, associated victim, or claimant.
- Two (2) family members may be reimbursed for travel expenses to identify and/or pick up the remains of a victim or make funeral arrangements at the location of the victim, attend the funeral of a victim or be with a critically injured victim unable to care for themselves.

Description of Coverage for Primary and Associated Victims:

Expenses incurred when required to travel at least ten (10) miles outside the home community to receive the following services.

- Counseling
- Medical treatment---if treatment is unavailable in the local community
- Participation in the sentencing of the offender by providing a victim impact statement to the court.

Financial Limits for Primary and Associated Victims:

- Mileage paid at State of Wyoming established rate.
- Housing and food reimbursed at the federal meals and incidental expense rates (M&IE) per U.S. General Services Administration (GSA) guidelines.
- No internal cap on this benefit, and the amount shall be deducted from the maximum award amount.

Description of Coverage for Claimants/ Family Members:

- Relatives to identify and/or pick up a victim's body/funeral arrangements.
- Relatives to attend the funeral of a victim.
- Relatives to be with a critically injured victim.

Financial Limits for Claimants:

- Commercial transportation, (i.e. commercial air, train, bus, or rental car).
- Mileage paid at State of Wyoming established rate.
- Housing and food reimbursed at the federal meals and incidental expense rates (M&IE) per U.S. General Services Administration (GSA) guidelines.
- All expenses shall not exceed \$600.00 per person in total and shall be deducted from the maximum award amount.

Requirements

- Receipts for commercial transportation and lodging.
- Mileage paid at the rate determined by computer based map application or WYDOT mileages for in state travel.

COMPENSATION AWARD APPEALS

A qualified victim, associated victim, or claimant who has an award reduced or denied for compensation may appeal the decision.

Requirements

- The victim must provide new or additional information that was not available at the time the compensation award or denial was made.
- The victim must appeal the decision in writing supplying the additional or new information within thirty (30) days of the award notification.

Appeal Process

- The letter of appeal and supporting documentation shall be given to the Claims Analyst who reviewed and recommended the reduction or denial of the original claim.
- The Analyst will review the appeal and the compensation file and make a summary and recommendation to the Director.
- The Director shall review the appeal, original documentation and summary and schedule a hearing to be conducted by phone.
- After the hearing, the Director shall advise the victim in writing, of the outcome of the appeal within thirty (30) days of the hearing.

Final Determination

All decisions of the Director on appeal are final in accordance Division of Victim Services, Office of the Attorney General Rules, Chapter 3, Section 15 (a)(vi).

SANE EXAM PAYMENT POLICY

ANONYMOUS REPORTING OF SEXUAL ASSAULT

The State of Wyoming, through the Victim Services Division of the Attorney General's office receives federal Violence Against Women Act (VAWA STOP) funds annually to help support local victim service agencies assist victims of domestic violence, sexual assault and stalking. In order to receive these funds, the Division of Victim Services (DVS) is required to cover the cost of a forensic medical examination for victims of sexual assault who do not wish to participate in the criminal justice process. DVS cannot pay for these examinations with Crime Victims Compensation funds as those funds require reporting the crime to law enforcement and participation in the investigation and prosecution of the crime. Therefore, DVS has set aside a specified amount of Surcharge funds received by the state for purposes of paying for these forensic medical examinations. Additionally, the victims of this crime are to remain anonymous for purposes of the forensic medical examination.

DVS can only pay for the evidence collection examination, STD testing, and pregnancy testing. Any other tests ordered that are not related to the crime are not eligible for payment through DVS.

When a victim of sexual assault alleged to have occurred in the State of Wyoming requests a forensic examination, DVS suggests the following procedures to ensure the medical provider receive payment for the cost of the forensic examination.

The examination should be conducted by a trained professional (a SANE nurse), acting within the scope of their practice following the protocols of their individual facility. The biological evidence collection kit and procedures should be followed. The local law enforcement agency will assume custody of the kit even if the victim chooses not to report the assault. The billing should be coded to reflect the sexual assault examination and other allowable costs. Any codes not allowable under this fund will not be reimbursed to the medical facility.

In order to receive payment for the examination, the medical provider will submit a cover letter and bill to DVS indicating the examination was conducted on a victim of sexual assault who does not wish to report the assault to law enforcement at this time. Identifying information about the victim should be redacted from the bill. DVS will reimburse the agency using the facility's identification number for the patient.

Once the bill is submitted to DVS, the claim will follow the policies and procedures of DVS to determine eligibility and authorize payment.

LAW ENFORCEMENT REPORTING OF SEXUAL ASSULT (without Compensation Claim)

- Victims of sexual assault, who have made a report to law enforcement and wish to have a SANE exam, may do so at no cost to the victim
- SANE Exam will be administered and evidence collected
- Hospital/SANE Program will not bill victim, will not bill victim's insurance without express consent
- As of July 1, 2019, Hospital/SANE Program shall not bill law enforcement for the cost of the exam, but shall instead send the invoice to the Division of Victim Services pursuant to Wyo. Stat. §6-2-309(g)
- Hospital/ SANE Program shall submit an invoice with a Division of Victim Services approved Law Enforcement Report Cover Sheet that contains (at a minimum) the following detail:
 - Name of responding Law Enforcement Agency & Report Number
 - Name of Advocate assisting victim (if known)
 - Victim's Name/DOB
- ONLY costs associated with the SANE Exam and associated evidence collection shall be paid by the Division of Victim Services.
- Hospital/SANE Programs shall inform the victim of the opportunity to file a Crime Victim's Compensation Claim through the Division of Victim Services.

VICTIM INFORMATION NOTIFICATION EVERYDAY (VINE)

Vine is a free and anonymous telephone service that provides victims of crime two important features: information and notification. VINE will monitor the custody status of offenders in county jails and state prisons. Information is available to callers 24 hours a day, 365 days a year. The VINE service is available in English and Spanish. A Live Operator is available to anyone calling the toll-free number for any reason at 1-866-994-8463.

Anyone may call VINE to determine the custody status of an offender. Callers will need a touch-tone telephone to use the service. This information is also available online at www.vinelink.com. To search for offender information through VINE, callers will need to provide one or more of the following items:

To search for information, callers will need to provide the offenders number or the offender's name. If there's more than one offender with the same name, a secondary search option is available by using the offenders age, race & gender.

Information VINE will provide:

- Offender Number
- Current Offender Custody Status
- Location of Offender
- Sentence Expiration Date (only for DOC)
- Schedule Release Date (only for DOC)

REGISTRATION

Crime victims and witnesses may register for notification by calling the toll-free number 1-866-994-8463 or by visiting the VINELink website at www.vinelink.com.

The following information will need to be provided:

- A telephone number, including area code. If there is a change in their phone number they will need to contact VINE to update their contact information.
- A 4-digit Personal Identification Number (PIN).

NOTIFICATION CALLS

Notification calls to registered persons will be made when one or more of the following occur: Release, Escape, Return to custody from Escape, Death.

CALLING PATTERNS

Release and escape calls will be made every 30 minutes for 48 hours or until the call is confirmed by entering the pin #. If the call was answered (answering machine) and was not confirmed the calls will continue every 2 hours for the rest of the 48 hours.

In custody notification calls (Death-Transfer) will be made every 30 minutes between 7:00 am – 9:00 pm for 48 hours or until the call is confirmed.

Notification calls will be delayed a minimum of 24 hours after the transfer record is received by VINE.

DOC advanced released notification calls will begin up to 14 days before release and calls will be made every 30 minutes between 7:00 am – 9:00 pm for 48 hours or until the call is confirmed.

Note: For telephones with Caller ID or Anonymous Call Block--a notification call from VINE will show up as a telephone number with a “502” area code. This number will not be answered when called, but is only used for purposes of getting the notification through when anonymous calls are blocked.

ADDITIONAL ASSISTANCE

For additional assistance for victims and witnesses, call the Appriss Operations Center at 1-866-Appriss (1-866-277-7477) option 2.

For complaints and state questions about VINE refer them to the director.